

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JUNE 26, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BANK OF AMERICA, N.A. vs. DECONTEE T. DOE
Case No. CL24-06579**

Plaintiff's Motion to Vacate Dismissal and Enter Judgment Under Terms of the Stipulated Settlement

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant, at an address at which personal service of summons and complaint had been completed over a year earlier. The Notice of Intention to Request Entry of Judgment was also served by mail, approximately eleven months after personal service of the summons and complaint. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

The motion is denied without prejudice.

SERVICE MONTHER, LLC vs. JAMES TAYLOR
Case No. CL24-07741

Defendant's Motion to Set Aside Default and Vacate Default Judgment

TENTATIVE RULING

The Parties are to appear to discuss whether the matter has settled.

VICTORYA ROSE JAMES and ELIJAH RICARTE JAMES vs. HYUNDAI MOTOR AMERICA
Case No. CU24-06447

Plaintiffs' Motion for Attorneys' Fees

TENTATIVE RULING

On May 5, 2026, the above matter was on calendar and the Parties appeared. The Parties made oral arguments on the issue of reasonable hourly billing rates. The Court allowed additional declarations and continued the hearing to June 26, 2026. The Court has reviewed the supplemental declarations.

At the hearing, Plaintiff's Counsel also referenced the Court's tentative ruling in *Powell v General Motors, LLC*, FCS 059228, where the Court found billing rates ranging from \$195 to \$875 with most billing in the \$400-\$600 hour range to be reasonable. The next sentence, however, states: "Further, Defendant does not make a particular challenge to counsel's rates." In the present case, Defendant has challenged Plaintiff Counsel's billing rates. The Court has considered all arguments and submissions and modifies its previous tentative ruling.

Plaintiffs VICTORYA ROSE JAMES and ELIJAH RICARTE JAMES move for an award of attorneys' fees and costs following settlement of this action brought under the Song-Beverly Consumer Warranty Act (the "Act" or "lemon law") against Defendant HYUNDAI MOTOR AMERICA.

A prevailing buyer under the lemon law shall be allowed to recover attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the prosecution of his action. (Civ. Code, § 1794, subd. (d).) When awarding required fees to a lemon law plaintiff a court must make an initial determination of the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the charge for the time are reasonable. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507 (*Hanna*)). These circumstances include, but are not limited to, the complexity of the case, procedural demands, skill exhibited, and results achieved. (*Ibid.*) If the time expended or the charge for that time are not reasonable under all the

circumstances the court must take this into account and award a lesser amount of fees. (*Ibid.*) The prevailing buyer has the burden of showing that the fees incurred were allowable, reasonably necessary, and reasonable in amount. (*Ibid.*) A reasonable hourly rate is one that fits with prevailing rates for like noncontingent work in the same area. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 406.) This “lodestar” method of fee award calculation vests discretion in the trial court to decide which hours are reasonably spent on litigation and what hourly rates should be used. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) This is because a trial judge is the best judge of the value of professional services rendered in the trial court. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.) However, the trial court may not tie the fee award to the amount of the plaintiff’s recovery in an action under the Act. (*Hanna* at p. 510.)

A prevailing buyer may also recover his costs. (Civ. Code, § 1794, subd. (d).)

The court finds that the rates Plaintiffs’ counsel request of up to \$695 an hour are not reasonable for the work involved and the area. Plaintiffs’ evidence in support of their claimed rates refers to contingent fee standards while the lodestar rate is to be calculated by reference to noncontingent standards. Defendant presents evidence that a reasonable noncontingent rate is \$300 an hour for attorneys and \$100 an hour for paralegals, by reference to its own counsel’s rates. The Court reduces the hourly rates for Plaintiff’s counsel and their paralegal as follows:

Attorney C.P.	\$450/hour
Attorney A.G.	\$400/ hour
Attorney C.U.	\$400/hour
Attorney J.L.A.	\$225/hour
Paralegal	\$100/hour

The court finds that the hours counsel billed are reasonable except for the estimated time by attorney CU for Plaintiff’s reply, review opposition, reply, tentative ruling, argument preparation, and attending hearing for a total of 5.3 hours. The Court finds a reasonable time of 2.5 hours for this work. Thus, the Court reduces the amount of hours claimed by attorney CU by 2.8 hours.

Plaintiffs’ motion is granted as follows:

Attorney C.P:	\$450/hour x 16.5 hours = \$7425
Attorney A.G:	\$400/hour x 3.8 hours = \$1520
Attorney C.U:	\$400/hour x 5.3 hours (8.1 hours – 2.8 hours) = 2120
Attorney J.L.A:	\$225/hour x 4.7 hours = \$1057.50
Paralegal	\$100/hour x 3.5 hours = \$350
Costs	= \$1245.59

TOTAL = \$12,472.50 attorneys fees + 1245.59 costs = \$13,718.09

MR. JEFFERY MARSHALL vs. SHERRI GRIJALVA; ET AL.
Case No. CU24-06535

Motion by Plaintiff for Leave to File 2nd Amended Complaint

TENTATIVE RULING

CRC 3.1113(a) gives the court discretion to construe the absence of a memorandum as an admission that the motion is not meritorious and cause for its denial.

Second, the motion failed to provide a proposed second amended complaint, nor to identify by declaration the effects of the changes, nor to identify the additions and deletions being made from the currently operative complaint (the first amended complaint). CRC 3.1324.

Third, there is no proof of service, to confirm service of the motion papers at least 16 court days prior to hearing, as required by C.C.P. §1005(b).

This motion is denied, for each and every one of these reasons.

YVONNE GARCIA; ET AL. vs. PRIME ASCOT, LP
Case No. CU25-05130

Defendant PRIME ASCOT L.P.'s Motion to Strike

TENTATIVE RULING

The motion to strike filed by Defendant PRIME ASCOT, LP, is denied without prejudice.

Under CCP Section 1005, supporting papers for a motion are required to be filed at least 16 days prior to the hearing. Although defendant filed a notice of its motion to strike, defendant did not file a memorandum of points and authorities in support of the motion, as required by Rule 3.1113(a) of the California Rules of Court, and defendant did not file a meet and confer declaration, as required by CCP Section 435.5. It appears that these documents were rejected by the clerks office on November 4, 2025 and never resubmitted.

THE PEOPLE OF THE STATE OF CALIFORNIA vs. VALERO REFINING COMPANY
– CALIFORNIA (and its Successors); ET AL.
Case No. CU25-10535

Defendant TOTAL SAFETY U.S., INC's Motion to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed motion for attorneys BIANCA N. DIBELLA and MARY "MOLLY" S. DIRAGO to appear as counsel pro have vice are GRANTED.

CARU SOCITEY FOR THE PREVENTION OF CRUELTY TO ANIMALS vs. SUSAN BRASHEAR ANTHONY **Case No. FCS049705**

Remittitur / Scope of Injunction

TENTATIVE RULING

The Parties are to appear.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

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